

ROUTINE ROAD MAINTENANCE WORKS SUBCONTRACT PROFORMA

VERSION 9: MARCH 2024

DAMIANS CONTRACTORS CC

SUBCONTRACT: X.004-130-2024/1 SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

SUBCONTRACT DOCUMENT

BASE DATE:
JULY 2026

TENDER DOCUMENT
VOLUME 03

SUBCONTRACT PACKAGE NO: SC103
CIDB GRADE 3-4CE

Damians Contractors
25 Napier Street
King William's Town
5601

NAME OF TENDERER: .....

Set sequential number

PART T2: RETURNABLE SCHEDULES

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T2.1 LIST OF RETURNABLE DOCUMENTS

Notes to tenderer:

1. **Returnable documents have been based on the SANS Standard Conditions of Tender for Construction Procurement and incorporate National Treasury requirements contained in their Standard Bidding Document (SBD) within them.**

   Returnable documents are separated into the following categories:
   - **(i) Forms, certificates and schedules for completion by the tenderer for use in the quantitative and qualitative evaluation of the tender (Forms A to C).**
   - **(ii) A list of all returnable documents for completion by the tenderer (Form D1).**

2. **Failure to submit fully completed relevant returnable documents may render such a tender offer non-responsive.**

3. **Tenderers shall note that their signatures appended to each returnable form represent a declaration that they vouch for the accuracy and correctness of the information provided.**

4. **Notwithstanding any check or audit conducted by or on behalf of the Contractor, the information provided in the returnable documents is accepted in good faith and as justification for entering into a contract with a tenderer. If subsequently any information is found to be incorrect such discovery shall be taken as willful misrepresentation by that tenderer to induce the contract. In such event the Employer has the discretionary right under FIDIC Particular Condition 15.6 to terminate the contract.**

PART T2.1 LIST OF RETURNABLE DOCUMENTS

Note to tenderer:

The list of returnable documents is shown in the following table, as indicated by the status of those documents it will be incorporated into the contract document.

FORM	LIST OF RETURNABLE DOCUMENTS	STATUS
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FORM A3.4:	REGISTRATION ON NATIONAL TREASURY CENTRAL SUPPLIER DATABASE	CONTRACT
FORM A3.5 (SBD6.2):	DECLARATION CERTIFICATE FOR LOCAL PRODUCTION AND CONTENT FOR DESIGNATED SECTORS	CONTRACT
FORM A3.6:	LOCAL CONTENT DECLARATION: SUMMARY SCHEDULE (ANNEXURE C)	CONTRACT
FORM A4:	SCHEDULE OF DEVIATIONS OR QUALIFICATIONS BY TENDERER	
FORM A5:	SCHEDULE OF ADDENDA TO TENDER DOCUMENTS	
FORM A6 (SBD2):	CERTIFICATE OF TAX COMPLIANCE STATUS	CONTRACT
FORM A7:	TENDERER'S REGISTERED FINANCIAL SERVICE PROVIDER LETTER AND BANK DETAILS	
FORM A8:	SCHEDULE OF CURRENT COMMITMENTS	
FORM A9:	CERTIFICATE OF COMPLIANCE WITH COMPENSATION FOR OCCUPATIONAL INJURIES AND DISEASES ACT,1993	CONTRACT
FORM A10:	REGISTRATION WITH CIDB	CONTRACT
FORM A11 (SBD6.1):	PREFERENCING SCHEDULE - TENDERER'S B-BBEE VERIFICATION	CONTRACT
FORM B1:	SCHEDULE OF WORK EXPERIENCE	
FORM B2:	SCHEDULE OF CONTRACTOR'S EQUIPMENT	
FORM C1:	CONTRACTOR'S ESTABLISHMENT ON SITE AND GENERAL OBLIGATIONS	
FORM D1:	SCHEDULE OF TENDER COMPLIANCE	
C1.1.1 (SBD7):	FORM OF OFFER	CONTRACT
C1.1.2:	FORM OF ACCEPTANCE	CONTRACT
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FORM A1: TENDERER'S BRIEFING MEETING

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FOR THE ROUTINE ROAD MAINTENANCE OF NATIONAL ROUTE R57 SECTION 1 FROM KM 7.8 TO KM 10.6

This is to certify that I, ...

representative of (insert name of tenderer) .....

of (address) .....

telephone number .....

fax number .....

e-mail .....

TENDERER'S REPRESENTATIVE ....
Signature Date

EMPLOYERS REPRESENTATIVE ....
Signature Date

FORM A1.1: CERTIFICATE OF INTENTION TO SUBMIT A TENDER

DAMIANS CONTRACTORS

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Notes to Tenderer:

1. The duly completed certificate of intention to submit a tender must be submitted by whoever intends to tender for this particular tender prior to 07 August 2026. Failure to submit the certificate of intention to tender within the required period may render the tenderer non-responsive and the Contractor does not accept responsibility for any communication not received by the tenderer timeously.

2. Failure to submit this certificate would result in the tenderer not receiving addenda or additional issued information and may result in the tenderer being non-responsive if “any material amendment/s” contained in the addenda or additional information is not included in the tender offer/submission.

3. Late notification of intention to tender by a prospective tenderer will not necessarily result in the tender closing date being extended.

4. Should you intend to submit a tender for this particular tender please sign the certificate, scan and email the completed document to the email address indicated in T1.1 of this tender document.

5. The Employer shall send all correspondences, including Addenda, only to the Tenderer’s email address as provided herein; in addition, the Employer shall upload all correspondences on SANRAL website and National Treasury eTender Portal.

This is to certify that I, ...

representative of (insert name of tenderer) .....

of (address)……

telephone number.....

Fax number.....

e-mail .....

intends to submit a tender in response to the tender notice and invitation for tender this contract.

TENDERER'S REPRESENTATIVE ..... ……..……..

(Signature) (Date)

FORM A2.1: CERTIFICATE OF AUTHORITY FOR SIGNATORY

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Notes to tenderer:

1. **The signatory for the tenderer shall confirm his/her authority thereto by attaching a duly signed and dated copy of the relevant resolution of the board of directors/partners on the tendering company's letterhead.**
2. **In the event that the tenderer is a joint venture, a certificate is required from each member of the joint venture clearly setting out:**
   - **(i) authority for signatory;**
   - **(ii) undertaking to formally enter into a joint venture contract should an award be made to the joint venture; and**
   - **(iii) name of designated lead member of the intended joint venture, as required by condition of tender 4.13.2.**
3. **The resolution below is given as an example of an acceptable format for authorisation, but submission of this page with the example completed shall not be accepted as authorisation of the tenderer's signatory.**

By resolution of the board of directors/partners passed at a meeting held on .....

Mr/Ms ....., whose signature appears below, has been

duly authorised to sign all documents in connection with the tender for:

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and any contract which may arise there on behalf of (*enter name of tenderer in block capitals*)

.....

SIGNED ON BEHALF OF THE COMPANY: .....

IN THE CAPACITY OF: .....

DATE: .....

SIGNATURE OF SIGNATORY: .....

WITNESSES: ....
SIGNATURE SIGNATURE

....

Pro forma

NAME (print) NAME (print)

FORM A2.2: CERTIFICATE OF SINGLE TENDER SUBMISSION

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Notes to tenderer:

1. **This certificate serves as a declaration by the tenderer that a single tender was submitted.**
2. **In the case of a Joint Venture (JV) or a Targeted Enterprise, a separate certificate is to be completed and submitted by each JV member or Targeted Enterprise.**

DECLARATION

I, the undersigned, ……. in submitting the accompanying tender on behalf of the tenderer do hereby make the following statements that I certify to be true and complete in every respect:

1. I have read and understand the notes to, and the contents of, this certificate.
2. I understand that the accompanying tender and any other tender shall be disqualified in the event that I, including a Joint Venture partner or a Targeted Enterprise, participate in more than 1 (one) tender.

SIGNATURE: ……

DATE: ……

NAME: ……

POSITION: ……

FORM A2.3: CERTIFICATE OF FRONTING PRACTICES

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Fronting Practices

Window-dressing: This includes cases in which black people are appointed or introduced to an enterprise on the basis of tokenism and may be:

- Discouraged or inhibited from substantially participating in the core activities of an enterprise; and
- Discouraged or inhibited from substantially participating in the stated areas and/or levels of their participation;

Benefit Diversion: This includes initiatives implemented where the economic benefits received as a result of the B-BBEE Status of an enterprise do not flow to black people in the ratio as specified in the relevant legal documentation.

Opportunistic Intermediaries: This includes enterprises that have concluded agreements with other enterprises with a view to leveraging the opportunistic intermediary's favourable B-BBEE status in circumstances where the agreement involves:

- Significant limitations or restrictions upon the identity of the opportunistic intermediary's suppliers, service providers, clients or customers;
- The maintenance of their business operations in a context reasonably considered improbable having regard to resources; and
- Terms and conditions that are not negotiated at arms-length on a fair and reasonable basis.

Responsibility to Report Fronting

In order to effectively deal with the scourge of Fronting, verification agencies, and/or procurement officers and relevant decision makers are encouraged to obtain a signed declaration from the clients or entities that they verify or provide business opportunities to, which states that the client or entity understands and accepts that the verification agency, procurement officer or relevant decision maker may report Fronting practices to the
BB-BEE Commission. Intentional misrepresentation by measured entities may constitute fraudulent practices, public officials and verification agencies are to report such cases too. SANRAL or its appointed agent has every right to embark on an investigation of fronting with regard to any potential service provider. In this regard, SANRAL is entitled to request any further information, interviews and any documentation from the respective potential service provider prior to any award. (This statement is for internal use)

Fronting Indicators

• The black people identified by an enterprise as its shareholders, executives or management are unaware or uncertain of their role within an enterprise;
• The black people identified by an enterprise as its shareholders, executives or management have roles of responsibility that differ significantly from those of their non-black peers;

• The black people who serve in executive or management positions in an enterprise are paid significantly lower than the market norm, unless all executives or management of an enterprise are paid at a similar level;
• There is no significant indication of active participation by black people identified as top management at strategic decision-making level;
• An enterprise only conducts peripheral functions and does not perform the core functions reasonably expected of other, similar, enterprises;
• An enterprise relies on a third-party to conduct most core functions normally conducted by enterprises similar to it;
• An enterprise cannot operate independently without a third-party, because of contractual obligations or the lack of technical or operational competence;
• The enterprise displays evidence of circumvention or attempted circumvention;
• An enterprise buys goods or services at a significantly different rate than the market from a related person or shareholder;
• An enterprise obtains loans, not linked to the good faith share purchases or enterprise development initiatives, from a related person at an excessive rate; and
• An enterprise shares all premises and infrastructure with a related person, or with a shareholder with no B-BBEE status or a third-party operating in the same industry where the cost of such premises and infrastructure is disproportionate to market-related costs.

DECLARATION

I, the undersigned, ……. in submitting the accompanying tender on behalf of the tenderer do hereby make the following statements that I certify to be true and complete in every respect:

1. I have read and understand the contents of this certificate.
2. I accept that the Employer may report fronting practices to the Department of Trade and Industry and the BEE commissioner.
3. I accept that intentional misrepresentation by measured entities may constitute fraudulent practices that shall be reported to the Department of Trade and Industry and the BEE commissioner.

SIGNATURE: ……

DATE: ……

NAME: ……

POSITION: ……

FORM A2.4: DECLARATION FORM - MANAGEMENT OF DOMESTIC PROMINENT INFLUENTIAL PERSONS, FOREIGN PROMINENT PUBLIC OFFICIALS AND FOREIGN INFLUENTIAL NATIONALS

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Notes to Tenderer:

1. **In line with a policy on Domestic Prominent Influential Persons (DPIP's), Foreign Prominent Public Officials (FPPO's) and Foreign Influential Nationals (FIN's), the purpose of this declaration form is to ensure maintenance and monitoring of the business relationships with prominent, influential stakeholders who have domestic and/or foreign influence as far as the procurement under the management of the Employer is concerned. This is done to mitigate the Employer's perceived association, reputational, operational or legal risk, as it strives to foster and maintain fair and transparent business relations. (This policy is available on the Employer's website: www.sanral.co.za)**
2. **It is compulsory that all prospective and existing tenderers conducting the business with the Employer, who potentially meet the definition of DPIP's, FPPO's or FIN's, complete this form by supplying credible information as required and submit together with their tender document.**
3. **Tenderers are required at the tender stage to declare any DPIP's, FPPO's or FIN's involved in their tenders, as part of their submission.**
4. **Further, that tenderers shall at the tender stage furnish the Employer of all information relating to namely, shareholders names, identity numbers and share certificates of the individual and/or transaction concerned using the form below, for verification purposes, including where applicable, confirmation as it relates to:**
   i. **Knowledge of any offence within the meaning of Chapter 2, Section 12 and 13 of Prevention and Combating of Corrupt Practices Act No 4 of 2006; and/or**
   ii. **Knowledge of any offence within the meaning of Chapter 3 of Prevention of Organised Crime Act No 121 of 1998 as it relates to any of the shareholders, directors, owners and/or individual link to the tenderer.**
5. **Tenderers undertake that should it be discovered that the information provided in the table below is fraudulently or negligently misrepresented, then Chapter 9, Section 214 and 216 of Companies Act No 17 of 2008 shall apply to shareholders, directors, owners and/or individual link to the tenderer.**
6. **Should the tenderer fail to declare or supply the Employer with credible information in the prescribed form, the tender may be rendered invalid.**
7. **Should the Employer, in the process of conducting verification and investigation of information supplied by the tenderer find out that the information poses a reputational risk, the tender shall be rendered invalid.**
8. **The following definitions shall apply:**
   i. **"Board" means the Board of Directors or the Accounting Authority of the Employer.**
   ii. **"Business relationship" means the connection formed between the Employer and external stakeholders for commercial purposes.**
   iii. **"DD" means Due Diligence.**
   iv. **"Domestic Prominent Influential Person" means an individual who holds an influential position, including in an acting position for a period exceeding 6 (six) months, or has held at any time in the preceding 12 (twelve) months, in the Republic, as defined in the Financial Intelligence Centre Amendment Act No 1 of 2017.**

v. **"DPIP" means a Domestic Prominent Influential Person.**
vi. **"Family members and known close associates" means immediate family members and known close associates of a person in a foreign or domestic prominent position, as the case may be, as defined in the Financial Intelligence Centre Amendment Act No 1 of 2017.**
vii. **"Foreign Influential National" means an individual who is not a South African citizen or does not have a permanent residence permit issued in terms of the Immigration Act No 13 of 2002, who possesses personal power that induces another person to give consideration or to act on any basis other than the merits of the matter.**
viii. **"Foreign Prominent Public Official" means (as defined in the Financial Intelligence Centre Amendment Act No 1 of 2017) an individual who holds or has held at any time in the preceding 12 (twelve) months, in any foreign country a prominent public function.**
ix. **"FPPO" means a Foreign Prominent Public Official.**
x. **"Improper influence" means personal power that induces another person to give consideration or to act on any basis other than the merits of the matter.**
xi. **"Senior Management" means the Executive Committee or its individual members.**

9. **A separate declaration is required from each DPIP, FPPO and FIN. In the event that the tenderer is a Joint Venture (JV), a separate declaration from each DPIP, FPPO and Fin from each of the Joint Venture (JV) members, is required.**

Domestic Prominent Influential Persons, Foreign Prominent Public Officials or Foreign Influential Nationals (DPIP's, FPPO's or FIN's) Reporting Form

IDENTIFICATION PARTICULARS					
Primary Particulars	First Name	Surname		Middle Name	ID/Passport Number
Country Details	Country of Origin		Citizenship	Current Country of Residence	
CURRENT STATUS AND BACKGROUND					
Current Occupation	Occupational Title			Status	
				Active	Non-active
Is the potential/business partner (mark with an "X" whichever is applicable):					
a DPIP	a FPPO	a FIN	Family member or Close Associate of a DPIP/FPPO/FIN?		

KNOWN BUSINESS INTERESTS				
No	Name of Entity	Role in Entity	Status	
1			Active	Non-active
2				
3				
4				
5				
6				
7				
8				
9				
10				

Domestic Prominent Influential Persons, Foreign Prominent Public Officials or Foreign Influential Nationals (DPIP's, FPPO's or FIN's) Reporting Form

MEDIA REPORTS / OTHER SOURCES OF INFORMATION
(Please reference all known negative or damaging media reports associated with the DPIP/FPPO/FIN

Reporting Person/s:

Full names:			
Designation:			
Department:			
Head of Department:			
Head of Department's signature:		Date:	
Reporting Person's signature:		Date:	

DECLARATION / UNDERTAKING BY THE TENDERER

I, the undersigned, …… declare that:

1. the information furnished on this declaration form is true and correct.
2. I accept that, any action may be taken against me should this declaration prove to be false.

Signature: ……

Name: ……

Position: ……

Date: ……

Name of Tenderer: ……

FORM A2.5: CERTIFICATE OF PERMISSION TO CONDUCT DUE DILIGENCE INVESTIGATION

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

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Notes to tenderer

1. **The tenderer shall complete the declaration below.**

2. **In the event of a Joint Venture (JV), each member of the JV shall comply with the above requirements.**

I, ……..…….. (name), the undersigned in my capacity as

…… (position), on behalf of

…… (name of company), herewith grant consent that SANRAL Should be Contractor or any of their appointed Service Providers may conduct a due diligence investigation on
……..…….. (Name of company)
to evaluate our ability to perform the contract as stipulated in the Standard Conditions of Tender, Clause 5.13(b).

In addition, any information in this regard requested by SANRAL Contractor or any of their appointed Service Providers, shall be submitted within the timelines of the request.

……. **……**
SIGNATURE **DATE**

FORM A3.1: BIDDER'S DISCLOSURE (Incorporating SBD4)

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Notes to Tenderers:

a) Definitions:
   i) "State" means:
      a. any National or Provincial Department, National or Provincial Public Entity or Constitutional Institution within the meaning of the Public Finance Management Act,1999 (Act No 1 of 1999);
      b. any Municipality of Municipal Entity;
      c. Provincial Legislature;
      d. National Assembly or the National Council of Provinces; or
      e. Parliament.
   ii) "Shareholder" means a person who owns shares in the company and is actively involvedin the management of the enterprise or business and exercises control over the enterprise.

b) If the Tenderer is a Joint Venture (JV), a separate declaration form is to be completed and submitted by each JV member.

c) If the Form is omitted or blank; or if the Tenderer found to have failed to declare conflict or declarefalse information, the Tender will be declared non-responsive and should it be discovered after the award of a contract, the contract may be terminated, and the Tenderer will be ultimately restricted for doing business with the State.

1. PURPOSE OF THE FORM

Any person (natural or juristic) may make an offer or offer in terms of this invitation to bid. In line with the principles of transparency, accountability, impartiality, and ethics as enshrined in the Constitution of the Republic of South Africa and further expressed in various pieces of legislation, it is required for the bidder to make this declaration in respect of the details required hereunder.

Where a person/s are listed in the Register for Tender Defaulters and / or the List of Restricted Suppliers, that person will automatically be disqualified from the bid process.

2. BIDDER'S DECLARATION

2.1 Is the bidder, or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest1 in the enterprise, employed by the state?

YES/NO

2.1.1 If so, furnish particulars of the names, individual identity numbers, and, if applicable, state employee numbers of sole proprietor/ directors / trustees / shareholders / members/ partners orany person having a controlling interest in the enterprise, in table below.

1 The power, by one person or a group of people holding the majority of the equity of an enterprise, alternatively, the person/s having the deciding vote or power to influence or to direct the course and decisions of the enterprise.

Full Name	**Identity Number**	**Name of State Institution**

1.1 Do you, or any person connected with the bidder, have a relationship with any person who is employed by the procuring institution?

YES/NO

1.1.1 If so, furnish particulars:

1.2 Does the bidder or any of its directors / trustees / shareholders / members / partners or any person having a controlling interest in the enterprise have any interest in any other related enterprise whether or not they are bidding for this contract?

YES/NO

1.2.1 If so, furnish particulars:

2. DECLARATION

I, the undersigned,
.....(name)
in submitting the accompanying bid, do hereby make the following statements that I certify to betrue and complete in every respect:

2.1 I have read and I understand the contents of this disclosure;

2.2 I understand that the accompanying bid will be disqualified if this disclosure is found not to be true and complete in every respect;

2.3 The bidder has arrived at the accompanying bid independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium[2] will not be construed as collusive bidding.

---

2 Joint venture or Consortium means an association of people for the purpose of combining their expertise, property, capital, efforts, skilland knowledge in an activity for the execution of a contract.

2.4 In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications, prices, including methods, factors or formulas used to calculate prices, market allocation, the intention or decision to submitor not to submit the bid, bidding with the intention not to win the bid and conditions or delivery particulars of the products or services to which this bid invitation relates.

2.5 The terms of the accompanying bid have not been, and will not be, disclosed by the bidder, directly or indirectly, to any competitor, prior to the date and time of the official bid opening or ofthe awarding of the contract.

2.6 There have been no consultations, communications, agreements or arrangements made by thebidder with any official of the procuring institution in relation to this procurement process prior to and during the bidding process except to provide clarification on the bid submitted where so required by the institution; and the bidder was not involved in the drafting of the specifications orterms of reference for this bid.

2.7 I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to bids and contracts, bids that are suspicious will be reported to the Competition Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act No 89 of 1998 and or may be reported to the National Prosecuting Authority (NPA) for criminal investigation and or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act No 12 of 2004 or any other applicable legislation.

I CERTIFY THAT THE INFORMATION FURNISHED IN PARAGRAPHS 1, 2 AND 3 ABOVE IS CORRECT.

I ACCEPT THAT THE STATE MAY REJECT THE BID OR ACT AGAINST ME IN TERMS OF PARAGRAPH 6 OF PFMA SCM INSTRUCTION 03 OF 2021/22 ON PREVENTING AND COMBATING ABUSE IN THE SUPPLY CHAIN MANAGEMENT SYSTEM SHOULD THIS DECLARATION PROVE TO BE FALSE.

Signature	Date

Position	Name of Bidder

FORM A3.2 (SBD9): CERTIFICATE OF INDEPENDENT TENDER (REPEALED)

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

WORK PACKAGE NO: SC103
FOR THE ROUTINE ROAD MAINTENANCE OF NATIONAL ROUTE R57 SECTION 1 FROM KM 7.8 TO KM 10.6

Notes to tenderer:

1. **This certificate conforms to Treasury Regulation 16A9 and the requirement of section 4 (1) (b) (iii) of the Competition Act, 1998 (Act No 89 of 1998), as amended, that prohibits an agreement between, or concerted practice by, firms, or a decision by an association of firms, if it is between parties in a horizontal relationship and if it involves collusive tendering.**
2. **Collusive tendering is a conspiracy between businesses that would normally be expected to compete, to agree not to compete, in a tender process.**
3. **This certificate serves as a declaration by the tenderer that the tender submitted is free from any collusion with a competitor.**
4. **If the tenderer is a joint venture, a declaration is required from each member of the joint venture.**

Declaration

I, the undersigned, in submitting the accompanying tender on behalf of the tenderer do hereby make the following statements that I certify to be true and complete in every respect:

1. I have read and understand the notes to, and the contents of, this Certificate;

2. I understand that the accompanying tender will be disqualified if this Certificate is found to be not true and complete in every respect;

3. I am authorised by the tenderer to sign this Certificate, and to submit the accompanying tender, on behalf of the tenderer;

4. Each person whose signature appears on the accompanying tender has been authorised by the tenderer to determine the terms of, and to sign the tender, on behalf of the tenderer;

5. For the purposes of this Certificate and the accompanying tender, I understand that the word “competitor” shall include any individual or organisation, other than the tenderer, whether or not affiliated with the tenderer, who:

a) has been requested to submit a tender in response to this tender invitation;

b) could potentially submit a tender in response to this tender invitation, based on their qualifications, abilities or experience; and

c) provides the same goods and services as the tenderer and/or is in the same line of business as the tenderer.

6. The tenderer has arrived at the accompanying tender independently from, and without consultation, communication, agreement or arrangement with any competitor. However, communication between partners in a joint venture or consortium will not be construed as collusive tendering.

7. In particular, without limiting the generality of statement 6 above, there has been no consultation, communication, agreement or arrangement with any competitor regarding:

a) prices;

b) geographical area where product or service will be rendered (market allocation);

c) methods, factors or formulas used to calculate prices;

d) the intention or decision to submit, or not to submit, a tender;

e) the submission of a tender which does not meet the specifications and conditions of the tender; or

f) tendering with the intention not to win the tender.

8. In addition, there have been no consultations, communications, agreements or arrangements with any competitor regarding the quality, quantity, specifications and conditions or delivery particulars of the products or services to which this tender relates.

9. The terms of the accompanying tender have not been, and will not be, disclosed by the tenderer, directly or indirectly, to any competitor, prior to the date and time of the official tender opening or of the awarding of the contract.

(b) I am aware that, in addition and without prejudice to any other remedy provided to combat any restrictive practices related to tenders and contracts, tenders that are suspicious will be reported to the Competitions Commission for investigation and possible imposition of administrative penalties in terms of section 59 of the Competition Act, 1998 (Act No 89 of 1998) and/or may be reported to the National Prosecuting Authority for criminal investigation and/or may be restricted from conducting business with the public sector for a period not exceeding ten (10) years in terms of the Prevention and Combating of Corrupt Activities Act, 2004 (Act No 12 of 2004) or any other applicable legislation.

Signature: .....

Name: .....

Position: .....

Date: .....

Name of tenderer: .....

FORM A3.3: DECLARATION OF TENDERER'S PAST SUPPLY CHAIN MANAGEMENT PRACTICES

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

WORK PACKAGE NO: SC103
FOR THE ROUTINE ROAD MAINTENANCE OF NATIONAL ROUTE R57 SECTION 1 FROM KM 7.8 TO KM 10.6

Notes to tenderer:

1. **This declaration:**
   - (a) **must form part of all tenders submitted.**
   - (b) **in the case of a joint venture (JV), must be completed and submitted by each member of the JV**
2. **This form serves as a declaration to be used by institutions in ensuring that when goods and services are being procured, all reasonable steps are taken to combat the abuse and/or misuse the State's procurement of the supply chain management system.**
3. **The tender of any tenderer may be disregarded if that tenderer or any of its directors have –**
   - (a) **abused and/or misused the State's procurement and/or supply chain management system;**
   - (b) **committed fraud, corruption or any other improper conduct in relation to such State system and/or;**
   - (c) **has been charged with fraud, corruption or any other improper conduct whether of a criminal or civil nature during the course and scope of rendering services to the state or any other party and/or entity; or**
   - (d) **failed to perform on any previous contract [with the State].**
4. **In order to give effect to the above, the following questionnaire must be completed and submitted with this tender.**

4.1	Is the tenderer or any of its directors listed on the National Treasury's Database of Restricted Suppliers as companies or persons prohibited from doing business with the public sector? **Companies or persons who are listed on this Database were informed in writing of this restriction by the Accounting Officer/ Authority of the institution that imposed the restriction after the *audi alteram partem* rule was applied.** The Database of Restricted Suppliers now resides on the National Treasury website (www.treasury.gov.za) and can be accessed by clicking on its link at the bottom of the home page.	Yes ☐ ☐	No ☐
4.1.1	If yes, furnish particulars:		
4.2	Is the tenderer or any of its directors listed on the Register for Tender Defaulters in terms of Section 29 of the Prevention and Combatting of Corrupt Activities Act (No. 12 of 2004)? **The Register for Tender Defaulters can be accessed on the National Treasury website (**(www.treasury.gov.za)by clicking on its link at the bottom of the home page.	Yes ☐	No ☐
4.2.1	If yes, furnish particulars:		

4.3	Was the tenderer or any of its directors convicted by a court of law (including a court outside the Republic of SouthAfrica) for fraud or corruption during the past five years?	Yes ☐	No ☐
4.3.1	If yes, furnish particulars:		
4.4	Was any contract between the tenderer and any organ of State terminated during the past five years on account offailure to perform on or comply with the contract?	Yes ☐	No ☐
4.4.1	If yes, furnish particulars:		

CERTIFICATION

I, the undersigned, ...

certify that the information furnished on this declaration form is true and correct.

I accept that, in addition to cancellation of a contract, action may be taken against me should this declaration proveto be false.

Signature: .....

Name: .....

Position: .....

Date: .....

Name of tenderer: .....

FORM A3.4: REGISTRATION ON NATIONAL TREASURY CENTRAL SUPPLIER DATABASE

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

The tenderer shall provide a pdf. copy of the supplier registration form from the National Treasury Central Supplier Database (www.treasury.gov.za). Tenderers who are not registered on the Central Supplier Database at tender closure will be declared non-responsive (refer to Tender Data, Clause C.2.1.1). In the case of a Joint Venture or a Targeted Enterprise, a pdf. copy of the supplier registration form must be provided for each member of the Joint Venture or Targeted Enterprise.

Name of Contractor: .....

CSD Master Registration Number (Supplier Number): .....

Supplier Commodity: ……...

Delivery Location: …….

SIGNED BY TENDERER: .....

FORM A3.5: DECLARATION CERTIFICATE FOR LOCAL PRODUCTION AND CONTENT FOR DESIGNATED SECTORS (Incorporating SBD6.2)

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

This Standard Bidding Document (SBD) must form part of all bids invited. It contains general information and serves as a declaration form for local content (local production and local content are used interchangeably).

Before completing this declaration, bidders must study the General Conditions, Definitions, Directives applicable in respect of Local Content as prescribed in the South African Bureau of Standards (SABS) approved technical specification number SATS 1286:2011 (Edition 1) and the Guidance on the Calculation of Local Content together with the Local Content Declaration Templates [Annex C (Local Content Declaration: Summary Schedule), D (Imported Content Declaration: Supporting Schedule to Annex C) and E (Local Content Declaration: Supporting Schedule to Annex C)].

1. General Conditions

1.1 Prices referred to in the determination of x must be converted to Rand (ZAR) by using the exchange rate published by South African Reserve Bank (SARB) on the date of advertisement of the bid as indicated in paragraph 3.1 below.

The SABS approved technical specification number SATS 1286:2011 is accessible on http://www.thedti.gov.za/industrial_development/ip.jsp at no cost.

1.2 A bid may be disqualified if this Declaration Certificate and the Annex C (Local Content Declaration: Summary Schedule – Form A3.6) are not submitted as part of the bid documentation.

2. The stipulated minimum threshold(s) for local production and content (refer to Annex A of SATS 1286:2011) for this bid is/are as follows:

Description of services, works or goods	**Stipulated minimum threshold**
Steel value-added construction material products	
Fabricated Structural Steel	**100%**
Joining/Connecting Components	**100%**
Frames	**100%**
Roof and Cladding	**100%**
Fasteners	**100%**
Wire Products	**100%**
Ducting and Structural Pipework	**100%**
Gutters, downpipes & launders	**100%**
Primary steel construction material products	
Plates (>4.5mm thick and supplied in flat pieces	**100%**
Sheets (<4.5mm thick and supplied in coils)	**100%**
Galvanised and Colour Coated coils	**100%**
WireRod and Drawn Wire	**100%**
Sections (Channels, Angles, I-Beams and H-Beams)	**100%**
Reinforcing bars	**100%**
Electrical cable material products	
Low Voltage	**90%**
Low-Cost Reticulation	**90%**
Medium & High Voltage	**90%**
ACR	**90%**
Telecom cable material products	
Optical Fibre Cables	**90%**
Copper Telecom Cables	**90%**
Plastic Pipes	
Polyvinyl chloride (PVC) pipes	**100%**
High density polyethylene (HDPE) pipes	**100%**
Polypropylene (PP) pipes	**100%**
Glass reinforced plastic (GRP) pipes	**100%**
Textiles, Clothing, Leather and Footwear	
Textiles	**100%**

3. Does any portion of the services, works or goods offered have any imported content?

YES		**NO**		***Tick applicable box***

3. Yes, the rate(s) of exchange to be used in this bid to calculate the local content as prescribed in paragraph 1.5 of the general conditions must be the rate(s) published by SARB for the specific currency on ***31 July 2026.***

(c) The relevant rates of exchange information are accessible on https://www.resbank.co.za**.**

Indicate the rate(s) of exchange against the appropriate currency in the table below (refer to Annex A of SATS 1286:2011):

Currency	Rates of exchange
US Dollar	
Pound Sterling	
Euro	
Yen	
Other	

NB: Bidders must submit proof of the SARB rate(s) of exchange used.

4.Thereafter the award of a bid, challenges are experienced in meeting the stipulated minimum threshold for local content the DTI must be informed accordingly in order for the DTI to verify and in consultation with the AO/AA provide directives in this regard.

(d) LOCAL CONTENT DECLARATION (REFER TO ANNEX B OF SATS 1286:2011)

LOCAL CONTENT DECLARATION BY CHIEF FINANCIAL OFFICER OR OTHER LEGALLY RESPONSIBLE PERSON NOMINATED IN WRITING BY THE CHIEF EXECUTIVE OR SENIOR MEMBER/PERSON WITH MANAGEMENT RESPONSIBILITY (CLOSE CORPORATION, PARTNERSHIP OR INDIVIDUAL)

IN RESPECT OF BID NO: **SUBCONTRACT: X.004-130-2024/1SC103**

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

ISSUED BY: **DAMIANS CONTRACTORS**

.....

N.B.:
1. The obligation to complete, duly sign and submit this declaration cannot be transferred to an external authorized representative, auditor or any other third party acting on behalf of the bidder.
2. Guidance on the Calculation of Local Content together with Local Content Declaration Templates (Annex C, D and E) is accessible on http://www.thedti.gov.za/industrial_development/ip.jsp. Bidders should first complete Declaration D. After completing Declaration D, bidders should complete Declaration E and then consolidate the information on Declaration C. **Declaration C should be submitted with the bid documentation at the closing date and time of the bid in order to substantiate the declaration made in paragraph (c) below.** Declarations D and E should be kept by the bidders for verification purposes for a period of at least 5 years. The successful bidder is required to continuously update Declarations C, D and E with the actual values for the duration of the contract.

I, the undersigned ..... (full names),

do hereby declare, in my capacity as .....

of ..... (name of bidder entity)
the following:
(a) the facts contained herein are within my own personal knowledge;
(b) I have satisfied myself that the goods/services/works to be delivered in terms of the above-specified bid comply with the minimum local content requirements as specified in the bid, and as measured in terms of SATS 1286:2011; andI)the local content percentage (%) indicated below has been calculated using the formula given in clause 3 of SATS 1286:2011, the rates of exchange indicated in paragraph 3.1 above and the information contained in Declarations D and E which has been consolidated in Declaration C:

Bid price, excluding VAT (y)	R
Imported content (x), as calculated in terms of SATS 1286:2011	R
Stipulated minimum threshold for local content (paragraph 2 above)	
Local content %, as calculated in terms of SATS 1286:2011	

If the bid is for more than one product, the local content percentages for each product contained in Declaration C shall be used instead of the table above.

The local content percentage for each product has been calculated using the formula given in clause 3 of SATS 1286:2011, the rates of exchange indicated in paragraph 3.1 above and the

information contained in Declarations D and E.

d) I accept that the Procurement Authority / Institution has the right to request that the local content be verified in terms of the requirements of SATS 1286:2011.

SIGNATURE: .....

DATE: .....

WITNESS No. 1: .....

WITNESS No. 2: .....

FORM A3.6: LOCAL CONTENT DECLARATION: SUMMARY SCHEDULE (ANNEXURE C)

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103
EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

C1	Tender No.:							**Note: VAT to be excluded from all calculations**
C2	Tender Description:							
C3	Designated Product(s):							
C4	Tender Authority:							
C5	Tendering Entity Name:							
C6	Tender Exchange Rate:	Pula	P	EU	€	GBP	£	

		Calculation of Local Content						Tender Summary			
Tender Item No.'s	**List of Items**	**Tender Price Each (Excl. VAT)**	**Exempted Imported Value**	**Tender Value Net of Exempted Imported Content**	**Imported Value**	**Local Value**	**Local Content % (Per Item)**	**Tender Qty**	**Total Tender Value**	**Total Exempted Imported Content**	**Total Imported Content**
(C8)	*(C9)*	*(C10)*	*(C11)*	*(C12)*	*(C13)*	*(C14)*	*(C15)*	*(C16)*	*(C17)*	*(C18)*	*(C19)*

(C20) Total Tender Value	R	
(C21) Total Exempt Imported Content	R	
(C22) Total Tender value net of exempt imported content	R	
(C23) Total Imported Content	R	
(C24) Total Local Content	R	
(C25) Average Local Content % of tender		%

Signature of tenderer from Annexure B:
(SATS 1286.2011) _____

Date: _____

ANNEXURE D: IMPORTED CONTENT DECLARATION - SUPPORTING SCHEDULE TO ANNEXURE C

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103
EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

(D1)	Tender No.:							**Note: VAT to be excluded from all calculations**
(D2)	Tender Description:							
(D3)	Designated Product(s):							
(D4)	Tender Authority:							
(D5)	Tendering Entity Name:							
(D6)	Tender Exchange Rate:	Pula	P	EU	€	GBP	£	

A. Exempted imported content				**Calculation of imported content**						**Summary**	
Tender item no's	**Description of imported content**	**Local supplier**	**Overseas Supplier**	**Foreign currency value as per Commercial Invoice**	**Tender Exchange Rate**	**Local value of imports**	**Freight costs to port of entry**	**All locally incurred landing costs & duties**	**Total landed cost excl VAT**	**Tender Qty**	**Exempted imported value**
(D7)	*(D8)*	*(D9)*	*(D10)*	*(D11)*	*(D12)*	*(D13)*	*(D14)*	*(D15)*	*(D16)*	*(D17)*	*(D18)*
									(D19) Total exempt imported value		R0

This total must correspond with Anne– C - C 21

B. Imported directly by the Tenderer				**Calculation of imported content**						**Summary**	
Tender ite' no's	**Description of imported content**	**Local supplier**	**Overseas Supplier**	**Foreign currency value as per Commercial Invoice**	**Tender Exchange Rate**	**Local value of imports**	**Freight costs to port of entry**	**All locally incurred landing costs & duties**	**Total landed cost excl VAT**	**Tender Qty**	**Exempted imported value**
(D33)	*(D34)*	*(D35)*	*(D36)*	*(D37)*	*(D38)*	*(D39)*	*(D40)*	*(D41)*	*(D42)*	*(D43)*	*(D44)*

(D45) Total imported value [by] 3rd party | R0

C. Imported by [a] 3rd party and supplied to the Tenderer

				Calculation of imported content						**Summary**	
Description of imported content	**Unit of measure**	**Local supplier**	**Overseas Supplier**	**Foreign currency value as per Commercial Invoice**	**Tender Rate of Exchange**	**Local value of imports**	**Freight costs to port of entry**	**All locally incurred landing costs & duties**	**Total landed cost excl VAT**	**Quantity imported**	**Total imported value**
(D33)	*(D34)*	*(D35)*	*(D36)*	*(D37)*	*(D38)*	*(D39)*	*(D40)*	*(D41)*	*(D42)*	*(D43)*	*(D44)*

(D45) Total imported value [by] 3rd party | R 0

D. Other foreign currency payments

Calculation of foreign currency payments				
Type of payment	**Local supplier making the payment**	**Overseas beneficiary**	**Foreign currency value paid**	**Tender Rate of Exchange**
(D46)	*(D47)*	*(D48)*	*(D49)*	*(D50)*

Summary of payments

Local value of payments
(D51)

(D52) Total of foreign currency payments declared by tenderer and/[or] 3rd party | R 0

Signature of tenderer from Annexure B:
(SATS 1286.2011) _____

(D53) Total of imported content & foreign currency payme–ts - *(D32), (D45) & (D52)* above | **R 0**

This total must correspond with Annex C - C 23

Date: _____

ANNEXURE E: IMPORTED CONTENT DECLARATION - SUPPORTING SCHEDULE TO ANNEXURE C

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

(E1)	Tender No.:		**Note: VAT to be excluded from all calculations**
(E2)	Tender Description:		
(E3)	Designated Product(s):		
(E4)	Tender Authority:		
(E5)	Tendering Entity Name:		

Local Products (Goods, Services and Works)	**Description of items purchased**	**Local suppliers**	**Value**
	(E6)	*(E7)*	*(E8)*
	***(E9)* Total local products (Goods, Services and Works)**		R 0

(E10)	**Manpower costs**	(Tenderer's manpower cost)	R 0
(E11)	**Factory overheads**	(Rental, depreciation & amortisation, utility costs, consumables etc.)	R 0
(E12)	**Administration overheads and mark-up**	(Marketing, insurance, financing, interest etc.)	R 0
		***(E13)* Total local content**	R 0

This total must correspond with Annex C - C24

Signature of tenderer from Annexure B:
(SATS 1286.2011) _____

Date: _____

FORM A4: SCHEDULE OF DEVIATIONS OR QUALIFICATIONS BY TENDERER

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

PAGE	DESCRIPTION

Note to tenderer: Deviations or Qualifications could result in the tender being declared non-responsive.

SIGNED BY TENDERER: .....

FORM A5: SCHEDULE OF ADDENDA TO TENDER DOCUMENTS

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

We confirm that the following communications received from the Employer before the submission of this tender offer, amending the tender documents, have been taken into account in this tender offer.

	Date	**Title or Details**

SIGNED BY TENDERER: .....

FORM A6 (SBD2): CERTIFICATE OF TAX COMPLIANCE STATUS

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

The tenderer shall complete the declaration below.

I, ... (name)
the undersigned in my capacity as ..... (position)
on behalf of ..... (name of company)
herewith grant consent that SARS may disclose to the Contractor or to the South African National Roads Agency SOC Limited (SANRAL) our tax compliance status. For this purpose, our unique security personal identification number (PIN) is …… our tax reference number is ....
and our tax clearance certificate number is .....

In the event of a joint venture, each member shall comply with the above requirement.

..... **.....**
SIGNATURE **DATE**

SIGNED BY TENDERER: .....

FORM A7: TENDERER'S REGISTERED FINANCIAL SERVICE PROVIDER LETTER AND BANK DETAILS

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

Notes to tenderer:
The tenderer shall attach to this form:
a letter (dated less than 3 months prior to the tender closing date) from a registered Financial Service Provider (registered with the FSB) which :
Provides banking details and declares how the entity conducts its account; and

confirms that the Tenderer has the financial means net of current commitments (independent of any contractual advance payment) available to meet the construction cash flow requirements estimated for the subject contract, or a written confirmation from any registered financial institution (Note to compiler Delete this note for CIDB 1 to 5); or
a letter (dated less than 3 months prior to the tender closing date) from the tenderer's independent registered accountant confirming that the Tenderer has the financial means net of current commitments (independent of any contractual advance payment) to meet the construction workflow requirements estimated for the subject contract. The confirmation by an independent registered accountant must indicate that the review, to be conducted in terms of ISRS4400, was done in terms of the Section 30 and Regulation 29 of the Companies Act No. 71 of 2008 (Note to compiler Delete this note for CIDB 1 to 5); or
a letter (dated less than 3 months prior to the tender closing date) from the tenderer's financial sponsorship confirming that the Tenderer has the financial means net of current commitments (independent of any contractual advance payment) to meet the construction workflow requirements estimated for the subject contract (Note to compiler Delete this note for CIDB 1 to 5)
If the Tenderer does not have financial means, the tender may be declared non-responsive in terms of clause C.3.13(b) of the Tender Data. (Note to compiler Delete this note for CIDB 1 to 5)
The Tenderer (and in the event of a joint venture, the joint venture member's combined) shall have available capital in excess of R , note to compiler Delete this note for CIDB 1 to 5. Stipulate 2.5% of the estimated contract value for CIDB 6 and 7, 5% of the estimated contract value for CIDB 8 and 9)
In the event that the tenderer is a joint venture enterprise, details of all the members of the joint venture shall be similarly provided and attached to this form.

Option 1 - Letter to be on the tenderer's registered Financial Service Provider's letter head

RE: ACCOUNT CONDUCT AND/OR CASHFLOW CONFIRMATION (Note to compiler, not applicable to for CIDB grade 1-5, delete)

To Whom It May Concern:

We hereby confirm that (Insert Tenderer's Name) has been banking with xxxx Bank for a period of xxx years, and the account has been conducted in a satisfactory manner.

The (Insert Tenderer's Name) has the financial means, net of current commitments, available to meet the construction cash flow requirements to the value of R…… for contract (insert contract
number), (Note to tenderer; if cashflow confirmation is provider by another institution, delete this paragraph).

i) Name of Account Holder:

.....

ii) Account number:

.....

iii) Bank name:

.....

iv) Branch number:

.....

v) Bank and branch contact details:

.....

RE: ACCOUNT CONDUCT (Applicable to Grade 1-5, delete for Grade 6-9)

To Whom It May Concern:

We hereby confirm that (Insert Tenderer's Name) has been banking with xxxx Bank for a period of xxx years, and the account has been conducted in a satisfactory manner.

vi) Name of Account Holder:

.....

vii) Account number:

.....

viii) Bank name:

.....

ix) Branch number:

.....

x) Bank and branch contact details:

.....

Option 2 - Letter to be on the tenderer's independent registered accountant letter head (Note to compiler, not applicable for CIDB grade 1-5, delete)

RE: CASHFLOW CONFIRMATION (independent registered accountant)

To Whom It May Concern:

The (Insert Tenderer's Name) has the financial means, net of current commitments, available to meet the construction cash flow requirements to the value of R…… for contract (insert contract number).

Option 3 - Letter to be on tenderer's financial sponsorship letter head (Note to compiler, not applicable for CIDB grade 1-5, delete)

RE: CASHFLOW CONFIRMATION (Financial sponsorship)

To Whom It May Concern:

The (Insert Tenderer's Name) has the financial means, net of current commitments, available to meet the construction cash flow requirements to the value of R…… for contract (insert contract number) through a financial sponsorship from (Insert Financial Sponsor's Name).

FORM A8: SCHEDULE OF CURRENT COMMITMENTS

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

Notes to tenderer:

1. **The tenderer shall list below all contracts currently under construction or awarded and about to commence and tenders for which offers have been submitted but awards not yet been made.**
2. **In the event of a joint venture enterprise, details of all the members of the joint venture shall similarly be attached to this form.**
3. **The lists must be restricted to not more than 10 contracts and 10 tenders. If a tenderer's actual commitments or potential commitments are greater than 10 each, those listed should be in descending order of expected final contract value or sum tendered.**

Table 1: CONTRACTS AWARDED				
Employer	Project	Expected total value of contract (incl. VAT)	Duration (Months)	Expected completion date

Table 2: TENDERS NOT YET AWARDED				
Employer	Project	Sum Tendered (incl. VAT)	Tendered Duration (Months)	Expected commencement

SIGNED BY TENDERER: .....

FORM A9: CERTIFICATE OF COMPLIANCE WITH COMPENSATION FOR OCCUPATIONAL INJURIES AND DISEASES ACT, 1993

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

Notes to tenderer:

1. **Discovery that the tenderer has failed to make proper disclosure may result in the Contractor terminating a contract that flows from this tender on the ground that it has been rendered invalid by the tenderer's misrepresentation.**

2. **The tenderer shall attach to this Form evidence that he is registered and in good standing with the compensation fund or with a licensed compensation insurer who is approved by the Department of Labour in terms of section 80 of the Compensation for Occupational Injuries and Diseases Act, 1993 (Act No 130 of 1993) (COID). If the tenderer is not in possession of such documentation at the time of tender closing it shall be made a condition of award of subcontract.**

3. **The tenderer is required to disclose, by also attaching documentary evidence to this form, all inspections, investigations and their outcomes conducted by the Department of Labour into the conduct of the tenderer at any time during the 36 months preceding the date of this tender.**

4. **In the event of a joint venture, each and every member of the Joint Venture shall comply with the above requirements.**

SIGNED BY TENDERER: .....

FORM A10: REGISTRATION WITH CIDB

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

The tenderer shall provide a printed copy of the Active Contractor's Listing off the CIDB website www.cidb.org.za. Tenderers whose CIDB registration expires within 21 days after close of tender shall attach proof of their application for re-registration (refer to tender data clause 4.1.1). In the case of a Joint Venture, a printed copy of the Active Contractor's Listing must be provided for each member of the Joint Venture.

Complete the following details of his registration with the Construction Industry Development Board.

Name of Contractor: .....

Contractor Grading Designation: .....

CIDB Contractor Registration Number:.....

Registration expiry date: ……. .....

SIGNED BY TENDERER: .....

FORM A11 (SBD6.1): PREFERENCING SCHEDULE - TENDERER'S B-BBEE VERIFICATION

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

Notes to Tenderer:

1. **The tenderer shall attach to this form a valid B-BBEE verification certificate issued in accordance with:**
- **the amended Construction Sector Codes published in Notice 931 of 2017 of Government Gazette No. 41287 on 1 December 2017 by the Department of Trade and Industry.**
- **in the event that the Measured Entity operates in more than one sector or sub-sector, the scorecard for the sector or sub-sector in which the majority of its core activities (measured in terms of Annual Revenue) are located will be acceptable.**

2. **The certificate shall:**
- **have been issued by a verification agency accredited by the South African National Accreditation System (SANAS); or**
- **be in the form of a sworn affidavit or a certificate issued by the Companies and Intellectual Property Commission in the case of an Exempted Micro Enterprise (EME) with a total annual revenue of less than R3 million if issued in accordance with the amended Construction Sector Codes published in Notice 931 of 2017 of Government Gazette No. 41287 on 1 December 2017 by the Department of Trade and Industry; and**
- **be valid at the original advertised tender closing date; and**
- **have a date of issue less than 12 (twelve) months prior to the original advertised tender closing date (see Tender Data 4.15).**

3. **In the event of a joint venture (JV), a project specific consolidated B-BBEE verification certificate in the name of the JV shall be attached, as well as a valid B-BBEE verification certificate for each member of the JV on which the JV certificate was calculated.**
4. **The attached verification certificate and the associated assessment report shall comply with the requirements of Tender Data clause 5.11.8 and shall identify:**

(a) **The name and domicilium citandi et executandi of the tenderer.**
(b) **The registration and VAT number of the tenderer.**
(c) **The dates of granting of the B-BBEE score and the period of validity.**
(d) **The expiry date of the verification certificate.**
(e) **A unique identification number.**
(f) **The standard and/or normative document, including the issue and/or revision used to evaluate the tenderer.**
(g) **The name and/or mark/logo of the B-BBEE verification agency or registered auditor.**
(h) **The category (Generic, QSE, Exempt) in which the tenderer has been measured.**
(i) **The B-BBEE status level.**
(j) **The South African National Accreditation System (SANAS) logo on the verification certificate once verification agencies have been accredited.**
(k) **The B-BBEE procurement recognition level.**
(l) **The score achieved per B-BBEE element.**
(m) **The % black shareholding.**
(n) **The % black women shareholding.**
(o) **The % black persons with disabilities shareholding**
(p) **The % black youth shareholding**
(q) **The % black people living in rural or underdeveloped areas or townships shareholding**
(r) **The % black military veterans shareholding**
(s) **The value-added status of the tenderer.**

5. The Employer will not be responsible for acquiring data that it needs for its own reporting systems which may not form part of a verification agency's standard certificate format. The tenderer, at its own cost, must acquire any missing specified data listed in 3 above from its selected verification agency or registered auditor and have it recorded on the certificate. Alternatively, such missing data must be supplied separately but certified as correct by the same verification agency or registered auditor and also attached to this form.

SIGNED BY TENDERER: .....

FORM B1: SCHEDULE OF WORK EXPERIENCE

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

EMPLOYER (NAME, TEL NO & FAX NO)	CONSULTING ENGINEER (NAME, TEL NO & FAX NO)	NATURE OF WORK	VALUE OF WORK	YEAR COMPLETED

SIGNED BY TENDERER: .....

FORM B2: SCHEDULE OF CONTRACTOR'S EQUIPMENT

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

The tenderer shall state below what equipment will be immediately available for this contract, what equipment will become available by virtue of outstanding orders, and what further equipment will be acquired or hired for the work should he be awarded the contract.

a) EQUIPMENT IMMEDIATELY AVAILABLE (I)

b) EQUIPMENT ON ORDER (O)
(State details of arrangements made, with delivery dates)

c) EQUIPMENT THAT WILL BE ACQUIRED OR HIRED (H)
(State details of delivery arrangements)

Note to tenderer: State with relevant symbol in the availability column.

PLANT AND EQUIPMENT TYPE	NUMBER TO BE USED ON THIS PROJECT	DATE OF MANUFACTURE	AVAILABILITY (State either I, O or H)

SIGNED BY TENDERER: .....

FORM C1: CONTRACTOR'S ESTABLISHMENT ON SITE AND GENERAL OBLIGATIONS

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

Note to tenderer:

If the tenderer should require additional compensation for his obligations under section M0300 (over and above the total tendered for items M030.01, M030.02 and M030.03) by including such additional compensation in the tendered rates and/or lump sum of items in the bill of quantities, these items and the value of such additional compensation shall also be set out in a letter attached to this form.

Should the extended and combined total tendered for:

The Contractor's general obligations:

M030.01	:	Fixed obligations (capped at 5.0% of tender amount)
M030.02	:	Value-related obligations (capped at 1.00% of tender amount)
M030.03	:	Time-related obligations (capped at 9.0% of tender amount)

exceed a maximum of 15 % of the Accepted Contract Amount, the Tenderer shall clearly set out his reasons for tendering in this manner in a letter attached to this page.

The Employer will duly consider these reasons but reserves the right to consider the tendered rates to be imbalanced and to deal with them in terms of Tender Data clause 5.9 contained in this volume.

Total tendered for Items M030.01, M030.02and M030.03 expressed as a percentage of the tender sum (excluding VAT): .....%

SIGNED BY TENDERER: .....

C1.1 FORMS OF OFFER AND ACCEPTANCE

C1.1.1 FORM OF OFFER

25 Napier Steet
King William's Town
5601

Sir,

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

WORK PACKAGE NO: SC103
FOR THE ROUTINE ROAD MAINTENANCE OF NATIONAL ROUTE R57 SECTION 1 FROM KM 7.8 TO KM 10.6

1. I/we, by signing these forms of offer acknowledge it is the equivalent of the Letter of Subcontractors Offer as defined in clauses 1.1.10 in the "Conditions of Subcontract for Construction for Building and Engineering Works designed by the Employer" (2011), published by International Federation of Consulting Engineers (FIDIC).

2. I/we, confirm that I/we practise the principles of corporate governance that abhors corruption and fraud and that I/we have examined the documents listed in the tender data and addenda thereto as listed in the returnable schedules and am/are duly authorised to represent and commit the tenderer to the contractual obligations contained therein.

3. I/we further confirm that by submitting this offer the tenderer accepts the conditions of tender and offers to perform all of the obligations and liabilities of the contractor under the contract including compliance with all its terms and conditions according to their true intent and meaning for an amount to be determined in accordance with the conditions of tender and the conditions of contract identified in the contract data.

A. PRICE OFFERED

THE OFFERED TOTAL OF THE PRICES (INCLUSIVE OF VALUE ADDED TAX) BROUGHT FORWARD FROM SECTION C2.2: PRICING SCHEDULE SUMMARY IS .....

.....

.....(In words)

(R ..... in figures)

I/we confirm that if any difference between the total of the Pricing Schedule Summary and the amounts stated above exists, the total in the Pricing Schedule Summary shall apply.

B. PREFERENCE CLAIMED

I/we claim the following B-BBEE contributor status level ..... as per Returnable Schedule Form A11: Tenderer's B-BBEE Verification Certificate subject to Tender Data 5.11.8. In the event of

any difference between the above stated status level and the Verification Certificate attached to Form A11, the Verification Certificate shall apply.

4. You may accept this offer by signing and returning to the tenderer one copy of the Form of acceptance before the end of the period of validity stated in the tender data, (or at the end of any agreed extension thereof), whereupon the tenderer becomes the party named as the contractor in the conditions of contract identified in the contract data.

5. Notwithstanding anything contained in a covering letter to this tender, I/we declare this offer is submitted entirely without deviations or qualifications other than those stipulated in Form A4: Schedule of Deviations or Qualifications by the tenderer and that it is made free from any fraud, corruption and misrepresentation.

Yours faithfully

SIGNATURE: ..... DATE:.....

NAME (IN CAPITALS): .....

CAPACITY: .....

NAME AND ADDRESS OF ORGANISATION: .....

.....

NAME AND SIGNATURE OF WITNESSES:

WITNESS 1:

SIGNATURE: .....

NAME (IN CAPITALS): .....

WITNESS 2:

SIGNATURE: .....

NAME (IN CAPITALS): .....

C1.1.2 FORM OF ACCEPTANCE

To ……..

Dear Sir,

SUBCONTRACT: X.004-130-2024/1SC103

EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

WORK PACKAGE NO: SC103
FOR THE ROUTINE ROAD MAINTENANCE OF NATIONAL ROUTE R57 SECTION 1 FROM KM 7.8 TO KM 10.6

ACCEPTANCE OF OFFER

1. It is our pleasure to inform you that the Contractor accepts your offer in the amount of R……. (i.e. including VAT but excluding CPA, and any contingent sum not in the priced schedule) for a contract period of ..... months and with a Base date of .....(***28 days prior to the closing date of subcontract tender)***

2. The amount due may not be the accepted price but payment shall be made in accordance with the conditions of contract identified in the contract data.

3. This Form of Acceptance is the equivalent of the Contractors Letter of Acceptance as defined in clause 1.1.6 of the "Conditions of Subcontract for Construction for Building and Engineering Works designed by the Employer" (2011), published by the International Federation of Consulting Engineers (FIDIC).

4. Acceptance shall form an agreement between us according to the terms and conditions contained in this form and in the contract that is comprised of:

   Part C1: Agreements and Contract Data (including this form of acceptance),
   Part C2: Pricing Data,
   Part C3: Scope of the Work,
   Part C4: Site Information, and
   Part C5: Annexures

   together with issued drawings and other documents, or parts thereof, which may be incorporated by reference into the Parts listed above.

5. Deviations and/or qualifications included in your offer as well as any changes to the terms of the offer agreed by us during the process of offer and acceptance shall not be valid unless contained in the appended schedule of deviations. In the event that an alternative offer is accepted, it is a fundamental condition of acceptance that all responsibilities and concomitant liabilities arising from the alternative design pass from us to you. Addenda issued during the tender period are deemed not to be deviations to the tender documents and schedules.

6. Notwithstanding the need to agree the mandate required by Section 37 of the Occupational Health and Safety Act (Act 85 of 1993), a proforma of which is attached for your reference, we hereby appoint you as the Subcontractor in terms of Regulation 7(1)(v).

7. A SARS compliance check has been done on you and you are found to be …. **(Select: "compliant" or "non-compliant").**

Pro forma

8. Within 14 calendar days of the date of this Form of Acceptance (including the schedule of deviations if any) you shall deliver to us:
   i. Fully completed and signed Form C 1.3.1.
   ii. Proof that you are registered and in good standing with the compensation fund or with a licensed compensation insurer, this is a condition of award of subcontract.
   iii. A completed Form of Banking Details

   Failure to fulfil either of the obligations (i), (ii) and (iii) above shall constitute a repudiation of this agreement and we may at our discretion apply any rights of remedy including barring you from tendering on any of our future tenders for a period to be determined by us, but not less than six (6) months, from the date of tender closure.

9. The effective date of the Subcontract shall be the date of this Form of Acceptance unless you, within four (4) calendar days of the effective date, notify us in writing of any justification why you cannot accept the contents of this agreement.

10. The Commencement Date is ….

11. Notwithstanding that a full, original-signed copy of the Subcontract document containing all contract data and schedules (including that of accepted deviations) will be delivered to you, this Form of Acceptance constitutes the binding Subcontract between us.

12. Please contact …… at ……. to make arrangements for the signing of the contract documents.

SIGNATURE: ..... DATE:.....

NAME (IN CAPITALS): .....

CAPACITY: Managing Director

SUBCONTRACTOR'S NAME AND ADDRESS:

NAME & SIGNATURE OF WITNESSES:

WITNESS 1:

SIGNATURE: .....

NAME (IN CAPITALS): .....

WITNESS 2:

SIGNATURE: .....

NAME (IN CAPITALS): .....

Pro forma

C1.2.3 CONTRACT DATA – INFORMATION PROVIDED BY THE TENDERER

Note to Tenderer:

This form is the equivalent of the Appendix to Subcontractors' offer as defined in Sub-clause 1.1.3 of the FIDIC Conditions of Subcontract, 2011

1. FIDIC CONDITIONS OF SUBCONTRACT

1.a Clause 1.4: Subcontract Communications

The subcontractor is: .....

Physical address: .....

.....

.....

Telephone: .....

Facsimile: .....

E-mail: .....

1.b Clause 6.4: Subcontractors' Representatives

The authorized and designated representative of the Subcontractor is:

Name: .....

2. INFORMATION REQUIRED FOR PUBLICATION OF TENDER RESULTS

Name of Directors	Appointment Date	Designation

SIGNED BY TENDERER: .....

C2.2 PRICING SCHEDULE (INCORPORATING SBD3)

FORM D1: SCHEDULE OF TENDER COMPLIANCE

DAMIANS CONTRACTORS

SUBCONTRACT: X.004-130-2024/1SC103
EMERGENCY ROUTINE ROAD MAINTENANCE PROJECT ON NATIONAL ROUTE R26 SECTION 6 TO 9 FROM BETHLEHEM (KM 0.00) TO LADYBRAND (KM 46.41), NATIONAL ROUTE R34 SECTION 11 TO 12 FROM VREDE (R546 INTERSECTION) (KM 0.00) TO BOTHASPAS (KM 16.36), NATIONAL ROUTE R74 SECTION 1 FROM N5/R74 INTERSECTION (KM 0.00) TO FREE STATE/KWAZULU NATAL BORDER (KM 31.46)

FORM NO / SBD NO	FORM DESCRIPTION	TICK IF COMPLETED
FORM A1:	CERTIFICATE OF TENDERER'S BRIEFING	
FORM A1.1:	CERTIFICATE OF INTENTION TO SUBMIT A TENDER	
FORM A2.1:	CERTIFICATE OF AUTHORITY FOR SIGNATORY	
FORM A2.2:	CERTIFICATE OF SINGLE TENDER SUBMISSION	
FORM A2.3:	CERTIFICATE OF FRONTING PRACTICES	
FORM A2.4:	DECLARATION FORM - MANAGEMENT OF DOMESTIC PROMINENT INFLUENTIAL PERSONS, FOREIGN PROMINENT PUBLIC OFFICIALS AND FOREIGN INFLUENTIAL NATIONALS	
FORM A2.5:	CERTIFICATE OF PERMISSION TO CONDUCT DUE DILIGENCE INVESTIGATION	
FORM A3.1	BIDDER'S DISCLOSURE (INCORPORATING SBD4)	
FORM A3.2 (SBD9):	CERTIFICATE OF INDEPENDENT TENDER – REPEALED	
FORM A3.3	DECLARATION OF TENDERER'S PAST SUPPLY CHAIN MANAGEMENT PRACTICES	
FORM A3.4:	REGISTRATION ON NATIONAL TREASURY CENTRAL SUPPLIER DATABASE	
FORM A3.5 (SBD6.2):	DECLARATION CERTIFICATE FOR LOCAL PRODUCTION AND CONTENT FOR DESIGNATED SECTORS	
FORM A3.6:	LOCAL CONTENT DECLARATION: SUMMARY SCHEDULE (ANNEXURE C)	
FORM A4:	SCHEDULE OF DEVIATIONS OR QUALIFICATIONS BY TENDERER	
FORM A5:	SCHEDULE OF ADDENDA TO TENDER DOCUMENTS	
FORM A6 (SBD2):	CERTIFICATE OF TAX COMPLIANCE STATUS	
FORM A7:	TENDERER'S REGISTERED FINANCIAL SERVICE PROVIDER LETTER AND BANK DETAILS	
FORM A8:	SCHEDULE OF CURRENT COMMITMENTS	
FORM A9:	CERTIFICATE OF COMPLIANCE WITH COMPENSATION FOR OCCUPATIONAL INJURIES AND DISEASES ACT,1993	
FORM A10:	REGISTRATION WITH CIDB	
FORM A11 (SBD6.1):	PREFERENCING SCHEDULE - TENDERER'S B-BBEE VERIFICATION	
FORM B1:	SCHEDULE OF WORK EXPERIENCE	
FORM B2:	SCHEDULE OF CONTRACTOR'S EQUIPMENT	
FORM C1:	CONTRACTOR'S ESTABLISHMENT ON SITE AND GENERAL OBLIGATIONS	
FORM D1:	SCHEDULE OF TENDER COMPLIANCE	
C1.1.1 (SBD7):	FORM OF OFFER	
C1.1.2:	FORM OF ACCEPTANCE	
C1.2.3:	CONTRACT DATA – INFORMATION PROVIDED BY THE TENDERER	
C2.2 (SBD3):	PRICING SCHEDULE (PROVIDED ON FLASHDRIVE)	

SIGNED BY TENDERER: .....